# EXHIBIT 5

IN THE SUPERIOR COURT OF THE STATE OF WASHINGTON
IN AND FOR COWLITZ COUNTY

RACHEL McKIBBAN, individually and as Personal Representative of the Estate of JORDAN McKIBBAN, deceased,
Plaintiff,

v.

CASE NUMBER 23-2-01183-08

JOPEN, LLC, Texas limited liability company; JOHNSON FOODS, LLC, a Wyoming limited liability company; LP IND., LLC, a Wyoming limited liability company; CAG HOLDINGS, LLC, a Wyoming limited liability company; RMH HOLDINGS, INC., a Wyoming corporation; OLISTICA, an unincorporated association; MIT THERAPY INC., an Idaho corporation; DURITY DISTRIBUTION, INC., an Idaho corporation; HUSH WORLDWIDE LLC, a Wyoming limited liability company; DRIP DROP DISTRO LLC, an Idaho limited liability company; BEDROCK MFG LLC, a Wyoming limited liability company; CLOUD HOUSE VAPORZ, INC., a Washington corporation; AMERICAN KRATOM ASSOCIATION, a Virginia non-profit corporation, and JOHN & JANE DOES 1 THROUGH 10,
Defendants.

ORAL AND VIDEOTAPED CR 30(b)(6) DEPOSITION
(VIA ZOOM VIDEOCONFERENCING)
OF
JOPEN, LLC, A TEXAS LIMITED LIABILITY COMPANY
BY AND THROUGH
EYAL DAVID GABBAY
MARCH 14, 2025

Reported by:
TOMMI RUTLEDGE GRAY, CSR No. 1693
Job No: MDLG 7170831

we've already covered.

You're familiar with them and their relationship to OPMS?

A. Uh-huh; yes.

Q. Are you familiar with Shaman Supplies, LLC?

A. I don't believe so.

Q. Are you familiar with KonoLabs?

A. Yes. That's Whole Herbs, a d/b/a -- or not a d/b/a, but like -- but yes, it -- it's -- it's associated with Whole Herbs.

Q. So is KonoLabs a d/b/a for Whole Herbs Company?

A. It's -- it's for marketing purposes.

Q. So I want to make sure I understand that.

So it's not formerly a d/b/a; it's not legally filed as an assumed name?

A. No. It was -- it was put in place for compliancy -- state compliancy.

Q. Compliance what?

A. Compliance; like, state compliance.

Q. With the State of Texas?

A. The State of Utah.

Q. Utah.

Why was it necessary to have KonoLabs be created as a d/b/a for compliance in the State of Utah?

A. And I believe it's Utah. This stuff's a long time ago. Utah required that, in general -- I guess it's not just kratom products -- but in general, they require that labels would have, you know, like, some sort of company name, distributed by, a phone number, and an email.

And if they didn't have it, they -- they would start -- and they did start -- they pulled products off the shelf and just basically destroyed it.

So there was a -- like, a little mad scramble to put stick -- stickers or something, a name or something on -- on products.

Q. What was the reason for not using Whole Herbs Company?

A. Marketing, originally.

Q. What's the marketing reason? I'm just trying to understand.

A. It's a long time ago. I -- and it was done in five minutes, so it was --

Q. Done in urgency --

A. Yes.
Q. -- for -- like, is there some sort of marketing benefit to having KonoLabs and Whole Herbs as, like, two names? Does that in any way drive the business?
A. No. Well, it -- originally for marketing, I think it was, like, this, you know, Whole Herbs brand, you know, nice, clean, white label type of thing.
So KonoLabs makes Whole Herbs, and you know, kratom products. It also made -- I want to say back then it also made some kava products and maybe some canna products and -- and so on.
So it wasn't going to be just a specific -- just a, you know, like, kratom-specified. It was supposed to be this -- you know, this -- I guess, demographic-wise, female-oriented, demographic product, and that's just what we had come up with as far as what would look good, work, and so on.
So in a mad scramble of trying to get stuff on the labels, that's what was chosen in five minutes.
Q. And you refer to Utah's regulations

of having to have an entity, address, phone number identified in relation to the product.

Are you aware of any other states that have regulations like that?

A. You know, I -- I wouldn't be surprised if even Utah had that prior; they just was enforcing it.

So, you know, and I wouldn't be surprised if that's the case everywhere, and I wouldn't be surprised if there's federal requirements.

It -- and I don't know that it didn't have some part of that already on the label; it just didn't have all of it on the label at the time.

So the mad scramble was to fix the -- having every part of it on the label. And -- and if I have to, like, think back, maybe it already said, like, "KonoLabs" as, like, a marketing thing on it, and they just now needed the, you know, email and phone number and some other verbiage on there.

It -- it wasn't just about that language there, but it was other language, as well, that was required on the label; that Utah

required.

Q. Okay. You mentioned the feds a second ago.

Do you know one way or another whether the -- there's a federal regulation that's similar that would require some sort of identification and contact information for an entity behind a certain product?

A. And so I'm going to take, like, one step back for a second and just -- because I'm talking a lot right now as -- not as A1, right? So we've kind of, like, gone --

Q. You were speaking as Whole Herbs Company?

A. Yes. You know, and I just want to make sure, because we've kind of completely gone in that direction. I just want to clarify that.

Q. Yeah, so let me ask you that question in your capacity here as -- as JOpen.

Does JOpen know one way or another whether there is federal regulation that, you know, a product -- the entity that is, you know, distributing a product, have its name on the product and have any contact information on the product?

Q. Are you familiar with Liv Group?
A. Yes.
Q. How so?
A. Also in the same capacity as paying -- I believe we paid Liv Group invoices for Martian.
Q. Liv Group invoices for Martian; okay.
A. I believe.
Q. Okay. I want to just clarify something, because I might have been confused.
Was it JOpen has paid invoices on behalf of Skamandros; is that correct?
A. It has at one point, yes.
Q. Okay. But Skamandros has not paid invoices on behalf of Martian?
A. No, it would not. There's no reason to.
Q. Are you familiar with Choice Organics?
A. I'm fam -- familiar with that -- that name, yes.
Q. How are you familiar with that name?
A. It was something that also in a scramble was put on labels at the same timeframe

as KonoLabs was.

Q. What labels was Choice Organics put on?

A. On OPMS products.

Q. Only OPMS?

A. Correct.

Q. And JOpen played a role in -- in getting Choice Organics on those labels?

A. A1 did. I'm just trying to -- yes.

Q. Why did A1 or JOpen play a role in updating OPMS labels?

A. We were distributing products of OPMS, and product was getting pulled off the shelf, which was directly impacting our bottom end. So our distribution contract somewhat said that we were the ones responsible for things like this in distribution, we were responsible to make sure that everything that was required for distribution, if it was licensing or compliancy as far as like the State goes for the distribution part, was there.

So we -- I specifically contacted Mark and said, "Hey, I need to do this. Can I do this?"

And he said, "Do whatever you need

to do to make the label correct."

So I took care of it. As Manager of A1, I took care of this.

Q. Just to unpack that a little. When you refer to "Mark," you mean Mark Reilly; is that right?

A. Correct.

Q. And how -- so I might be --

MR. COWGILL: Strike that.

BY MR. COWGILL:

Q. I'm just trying to understand, like, the -- how that happens, right?

So does JOpen have the OPMS labels in its warehouse and it's able to change those labels, or how does that actually function?

A. So specifically for that particular act right there, we had to produce stickers that had that information on it.

And I believe it also had to say, like, "All Natural Product" or something of the sort, like, they were required to have for the Utah specifically.

What they had put out there, they had said, like, -- I don't want to guess, right,

Any relationship there?
A. None whatsoever.
Q. How about someone named Pudgi?
A. No.
Q. How about OPMKratom?
A. I believe that's the old websites. Is that what you mean?
Q. Yes. We'll -- we'll talk more about it later, but there -- there is an -- an older website that was OPMKratom.com; is that your understanding?
A. Correct.
Q. And there's now a website that OPMSKratom.com, right?
A. Correct.
Q. And so if I understand you, OPMKratom.com is just the old website for OPMSKratom?
A. Correct.
Q. How was JOpen familiar with that website?
A. I'll put it in the context of A1. OPMKratom, I believe, was Mark Reilly's website, I believe. But he had, I believe, lost his credentials for controlling it, so it was, like,

overlaid over OPMSKratom, and eventually OPMKratom had died, meaning it ran out of time.

Q. So just to understand, when you say "it" -- "it died" or "ran out of time," do you mean the web hosting?

A. Right; yeah.

Q. Okay.

A. The purchase -- whatever he purchased or whatever expired.

Q. Okay. And do I understand correctly, your recollection is that Mark just lost the ability to log in to it; his credentials to log in and manage it were just lost?

A. Correct.

Q. All right. Did JOpen play any role in managing that website, OPMKratom?

A. We hired Onix to update the website per, you know, agreement with Mark. And so we had the ability to get in, but he didn't have the ability -- which is two different things, right, where the server was or whatever. But he didn't have the ability to -- to log in and continue paying for it.

Q. Okay. So there -- there was the

What do you make of the stories from people that say kratom has caused them to be addicted to kratom; that it's caused them, you know, to have adverse physical things happen to them, such as liver failure?

MS. PAYTON: Object to the form of the question.

A. Are you talking to me in my personal capacity right now? We've kind of been talking about my personal capacity for a little bit. Is that what we're doing?

BY MR. COWGILL:

Q. If you want to answer in your personal capacity, go ahead. I think the question is -- is -- can be answered either in your personal or JOpen. You're welcome to answer it in both.

A. Okay. So as far as addiction goes, you know, it's my belief -- without being a scientist -- that there's people who are addicted to other -- there's people addicted to drugs or may -- whatever it may be, and use kratom to try to not take those drugs.

But, you know, it's -- if somebody's addicted, they're addicted. And them having

some sort of withdrawal limiting using kratom, so they are associating the need to have kratom in order not to be addicted to the drugs that they are addicted to.

So that's -- in -- in their mind, they are addicted to kratom if -- you know? If your form of not being hungry is eating jelly doughnuts and -- and you can eat something else, you know, to cure it, it -- it's not -- you -- don't say it's the other thing that you're -- makes you hungry, it's -- it's the jelly doughnuts that you're trying to satisfy.

And that may be a bad analogy, but the idea is that kratom is not what's addictive. Kratom is what's helping them deal with their addiction.

Q. I just want to make sure I understand.

So are -- you're saying that there's this context of people using kratom to assist with withdrawals from opiates, and really, their addiction is to the underlying opiate; kratom is just what they're taking to deal with that other addiction. They're not, in fact, addicted to kratom?

A. For some people, that's what they do, yes.

Q. What about people that say, you know, they're addicted to kratom and never took opiates? They're not taking kratom for that reason.

A. I don't know the factors around those people, right, because I -- there's something I don't understand at all in science. I've never really got into it, but you hear people that use kratom to deal with alcoholism.

And I don't understand how that works, but you -- you hear that all the time, they -- and it is not -- you know, alcohol is something that, God knows, a lot of people are addicted to.

If -- if it's expressed as an addiction or not, there's a good percentage of our population that's addicted to alcohol, and if you're using kratom to deal with that, and it works, and it works for a lot of people, that becomes an addiction in your mind.

Q. Do you believe that kratom can cause overdoses?

A. No.

just -- anything can be clearer, right?
BY MR. COWGILL:
Q. Do you know whether drug interactions between kratom and prescription drugs, whether those have been fully fleshed out through research and scientific literature?
MS. PAYTON: Object to the form of the question.
A. I do not.
BY MR. COWGILL:
Q. I want to direct your attention to this part of the package. There's a glare on it, but I'm going to read it. If you can't make it out, let me know.
But it says "Distributed by: Choice Organics," gives a phone number, "(213) 221-8049," an address of "3680 Wilshire Boulevard, Suite P04 1084" in L.A., California. I can't read that ZIP, but that's the ZIP. And it says "info@OPMSKratom.com" as the email.
Do you see all that?
A. I do.
Q. And I think you explained earlier that this was what initially was a sticker, then incorporated in a label in response to a -- the

situation in Utah?

A. Correct.

Q. And so Choice Organics, that's -- that's not an actual entity anywhere?

A. It is not.

Q. So what -- what does Choice Organics refer to?

A. I don't know. It changed over the years. But originally it was there -- it's like a marketing thing, like a Choice Organics. You know, OPMS by Choice Organics as a marketing thing.

It's -- when the label was put on, it was also a way to distinguish, you know, which brand was associated with the distribution. And obviously once all that information was there, you know, then you had people contact and say, "Hey, I want to sell this" or whatever.

Q. So is there someone that answers this phone number here, this 23 -- 213 phone number?

A. It -- it actually goes into -- I forget what it's called. Lie, where it's -- it takes it -- whatever message you leave, it

trans -- not trans. It's whatever it's called. Trans --

Q. "Scribes"?

A. Huh?

Q. "Transcribes"? "Transcribes"?

A. Transcribes, yes. It transcribes the message and sends it into the email.

Q. Which email does it send it to?

A. The one below that.

Q. The info@OPMSKratom.com email?

A. Yes.

Q. Then who -- who's in charge of that email?

A. It is currently done by a third-party -- third-party company. I don't know the name off the bat.

Q. When was that -- so that transcription service for the calls, was that set up, you know, when you set this up in response to the Utah thing, I think in 2015, or was that done later?

A. Somewhere around that timeframe.

Q. And same for the email? That's always been monitored by a third party?

A. Not always by a third party. I

originally monitored it.
Q. When did it shift to third-party monitoring?
A. Maybe a year-plus ago, a year ago.
Q. And up until then, it was always you?
A. It was.
Q. Do you still have access to that email account?
A. I do not.
Q. Do you still have those emails stored somewhere?
A. They were given to counsel.
Q. Have you ever received customer complaints at that email?
A. Of course.
Q. What sort of complaints have you received?
A. It's -- it's like "Oh, it was not the right color," or, "It wasn't what I expected," or, you know, stuff like that.
Q. Did you respond to those?
A. Not always.
Q. What determined whether or not you would respond to a complaint?

A. I -- I mean, I guess I realized that the -- the majority of contacts were from customers trying to get free product, so after a while, it becomes a little bit, you know, difficult to deal with.

Q. Do you recall ever receiving a copy of a lawsuit at that email?

A. I do not. This may have happened -- if it happened, it may have happened after.

Q. Okay. And were -- were you ever made aware by anyone that that phone number doesn't seem to be functioning at any point in time?

MS. PAYTON: Object to the form.

A. I believe it is functioning. I know the number has changed over time.

BY MR. COWGILL:

Q. And that's why I'm asking.

Just over the time that you've had a phone number on the package, did you ever receive any -- any complaints or any statement that, "Hey, this number's not working"?

A. I -- I don't remember specifically -- specifically to that number,

Q. And you notice that this label doesn't have the same warning language that we saw on the package earlier, the Silver package?
A. I do.
Q. Do you know why that is?
A. Why it doesn't have the same --
Q. Why it doesn't have the same language, yeah.
A. I mean, for one, it's not the same product.
Q. Any other reason?
A. I -- I don't know if it's the same timeframe or not.
Q. Do you know what would go here in this black box, (indicating)?
A. Lot number, serial number.
Q. Choice Organics, was there any reason that y'all picked the 213 phone number and an L.A., California address?
A. At the time, for marketing purposes, you know, OPMS was a fairly small company, so this was a way to just market a more glamorous type of address versus Dallas, Texas type of thing.
Q. Is there some sort of marketing

advantage to an L.A. or -- or New York, maybe, type of address?

A. I mean, L.A. is known for all the big distributors, all the big wholesalers.

Q. Okay. I asked this earlier about the Silver package. I can ask it generally, but I'll ask specifically about this Gold two-pack.

Are you able to have sort of like a timeline showing the different labels as they evolved over time? Is that something that JOpen's able to provide?

A. I'm sure the brand can. Not -- again, it's not necessarily A1, but I -- we can get it.

Q. Is it fair to say that would be true of just OPMS labels in general?

A. Yeah. I mean, we would have to reach out, but we can.

Q. It would be Martian that you'd need to work with, and -- and Onix, I -- I guess?

A. Yes, yes.

(Exhibit 11 marked for identification.)

BY MR. COWGILL:

Q. Okay. Now I want to switch gears a little bit to Whole Herbs.

www.KonoLabs.com."

Did I read that correctly?

A. You did.

Q. What is the intent of this notice?

A. So Whole Herbs' Manager, David, I guess I understood that sometimes -- like, you know, those CBD, kratom shops?

Q. Yeah.

A. They would sometimes buy product, like Whole Herbs or Remarkable Herbs, and then they would just open it and put it in jars and sell it by the weight, and they wanted that not to be that way.

Q. Do you know which retailers did that?

A. This was a long time ago. This was just something we -- we got a whiff of that this was happening, and just wanted to put something out there to hopefully skirt it a little bit.

Q. Do you have any reason to think that the retailer in the Jordan McKibban matter, Cloud House Vaporz, ever did that?

A. I -- I don't believe so.

Q. All right. And then down here it says "Distributed by KonoLabs," gives an

address, "4533 MacArthur Boulevard, Suite 5130, Newport Beach, California 92660," Phone Number "(424) 209-3768," and provides an "info@KonoLabs.com" email address.

Did I read all that correctly?

A. You did.

Q. All right. So I think, you know, when we discussed Utah and the situation there earlier, this is what was added to these bags, right?

A. Correct.

Q. And so is the reason that you went with a Newport Beach, California address the same as L.A. on OPMS?

A. It is.

Q. Okay. So I -- I understood that to be more or less that there was a -- a cachet or prestige with being a distributor out of that location?

A. It is; yes.

Q. This phone number, is that a phone number that a -- a human being would be answering on the other line?

A. It's the same format. It goes into -- it -- it was for a while, and then --

right?

A. Yes. I guess we should define "manage" maybe if we're going to get into details on the website.

Q. Well, let me ask you this: Who -- who creates the content for OPMSKratom.com?

A. The content was originally created by Martian, and over time, with the help of Martian, and with work with Martian, it was modified, and with, of course, attorneys over time.

Q. And does JOpen view its online marketing as B2B marketing, not as something that a consumer would find online when researching the product?

A. Would -- okay. The OPMS website is not JOpen's website.

Q. How does JOpen view the marketing on the website, then?

A. On OPMS's website?

Q. Right.

A. OPMS's website doesn't belong to JOpen.

Q. Who does it belong to?

A. It belongs to Martian Sales.

Q. Have you ever been made aware that Martian Sales has said that you own the website, JOpen?

A. I don't know what he says. It's his website. We -- even the content that was there originally came from Martian Sales, and our contract specifically only gives us the right to work with him and get approval from him on anything we do on our website.

Q. All right. Now let's -- let's talk more about Martian.

And so I -- I think you said -- well, I'll just ask it: How did your relationship -- how did JOpen's relationship with Martian Sales first start?

A. I was introduced to Mark Reilly through Peyton, and he gave me a pitch on OPMS products, and eventually I started buying products from him and selling.

Q. Was that -- that meeting and pitch, was that at the trade show that you described earlier today?

A. It is.

Q. And so when that relationship first started, was that roughly 2012, you said, or --

A. Somewhere around that timeframe.

Q. Okay. So going back to that timeframe, let's say, from roughly 2012, was -- was it -- so if I -- if I understand, or if I understood your earlier testimony, I'm trying to work up from earlier today and understand how it's evolved, initially you were just buying the product -- the OPMS product directly from Martian, and then distributing it?

A. Correct.

Q. Okay. Now I understand that that's changed.

Can you give me a sense of how that's changed and along -- well, let's do how it's changed, first.

A. So originally this was strictly a purchase the product and sell the product from Martian, and then after a while it was, like, the ability to distribute product was a little bit more, but it was obviously still selling the product; it was his product.

And then there was a timeframe where he needed help with packaging the product, and so he -- he came to me and said, "Hey, I can't -- I can't package product fast enough.

MR. COWGILL: Sorry. Did somebody say something there? No? Okay.

MS. PAYTON: No. When -- to the court reporter, when we take the next break, we're going to want the time on the record.

THE VIDEOGRAPHER: You've been on 5 hours and 22 minutes so far.

MS. PAYTON: Thank you.

BY MR. COWGILL:

Q. All right. So I think I've got Exhibit 7 back up.

Are you able to see that, Mr. Gabbay?

Can you see it, Mr. Gabbay?

A. I can; yes.

Q. So this is the 2023 Distribution Agreement between Martian Sales and A1 Wholesale.

I'm going to ask you some questions about it, and to the extent that you know it's

different from 2020, this Agreement, can you just let me know?

A. Of course.

Q. Thank you; all right.

So these "Recitals," just know that the "Supplier is a supplier of OPMS Products," meaning Martian Sales is supplying OPMS to JOpen, right?

A. Correct.

Q. Okay. And it refers to the prior Agreement; the January 23rd, 2020 Agreement.

Do you see that?

A. I see it.

Q. And it expresses a mutual desire to terminate that Agreement and enter a new Agreement, being this 2023 Agreement.

Do you understand that?

A. I do.

Q. Okay. There's reference here to a "Distribution Fee," meaning the "fee charged by the Distributor for the services performed by or at the direction of Distributor on Supplier's behalf, less all costs, including but not limited to administrative, financial, managerial, logistics, accounting, invoicing,

payment processing, research and development, testing and analysis, customer services, and expense management services for Supplier."

Did I read that correctly?

A. You did.

Q. What is the Distribution Fee? Does that change from month to month?

A. The dollar amount does, yes.

Q. And how -- how is that calculated?

A. It's a percentage of sales.

Q. What percentage?

A. 29 percent.

Q. Has that always been the percentage, or it's changed year-over-year?

A. It's been generally that number.

Q. And so given that it's a percentage of sales, does that just mean JOpen retains that percentage of sales, or is there actually money coming from Martian to JOpen for payment of a distributor fee?

A. It retained that percentage.

Q. And then the remaining -- the remaining percentage, is that -- is that then passed to Martian after deductions for costs?

A. No. There's a -- there's an amount

he receives.

Q. Does any percent of those sales go to manufacturers?

A. Of the 29 percent?

Q. No. Of the remaining -- I guess, was that 71?

A. It's whatever their bills are.

Q. So what happens to the remaining 71 percent?

A. It pays for -- it pays for everything else, like the manufacturer, packager. I'm trying to remember the exact -- the sourcing company, and there's donations made on its behalf of -- of a -- on OPMS's behalf.

Q. So that 71 percent, if that's not actually all used up for the purposes you're -- you're expressing, so if that doesn't zero out, where does the balance go?

A. It usually goes into "We'll talk about it," and then maybe do promos or lower pricing so that way a better -- better ability to get into the market, especially if the prices have gone down in the market, which they do, like any business, year to year. So we'll do promotions and so on.

that nothing in this Agreement shall restrict Supplier from selling the Products to any other Person. For the avoidance of doubt, this Agreement and the distribution rights contained herein are non-exclusive."

Do you know whether any other distributors distribute OPMS products?

A. Currently? Not that I know of.

Q. Do you know if there has been in 2021 or '22 -- sorry -- 2022?

A. I may have misunderstood that question. You know, I mean, obviously there's a lot of distributors selling OPMS products, right, besides A1.

But this relationship specifically is -- as -- as I know it, it's exclusive -- not exclusive, but it's only done with us current -- currently.

Q. Gotcha. So I think what you're referring to is A1 provides OPMS to a number of other distributors, and of course they're selling OPMS, right?

A. Correct, correct.

Q. But as far as the direct relationship between Martian and a distributor,

that's only you and Martian?

A. Currently, yes.

Q. And was there ever a time when that was not the case?

A. Obviously in the beginning of our relationship, it was not the case.

Q. Meaning back in 2012?

A. '12, '13, '14, in that timeframe, yes. Maybe -- maybe a little bit further, but around that timeframe, yes.

Q. And then when would you say that it became, you know, just you and Martian?

A. I -- I didn't really have a hundred percent control of that, so I don't know.

Q. Okay. Are you familiar with the website OPMSWholesale.com?

A. I'm familiar with a website called OPMSWholesale.com.

Q. Does JOpen have any involvement in that website?

A. It does not.

Q. Do you know who owns that, by any chance?

A. It's third party. It has nothing to do with anyone. Like, it doesn't have anything

A. It's automated based on demand.
Q. Okay. So the system can tell -- there's some sort of technology in place that can tell, "All right. X number of orders have gone out through JOpen, so we need to restock"?
A. Exactly.
Q. Okay. Is that the same Odoo pick-and-pull system, or is there some other --
A. I -- I think it's some sort of patch to that or a patch that pulls the information off of that. That's a little bit above my pay grade to understand exactly how the software works, but it basically understands what is needed, and it informs -- it informs Flo-Tech.
Q. Okay. And so you see here on No. 2, "Distributor will work" -- will work "with various parties involved in the supply chain to secure an adequate supply of the Products at Supplier's expense"?
Did I read that right?
A. You did.
Q. Okay. So who -- who are "the various parties involved in the supply chain" this refers to?
A. We'll work with Flo-Tech to get

packaging; we'll work with Calibre to get product; and -- and then supply them -- you know, like, Flo-Tech, for example, what we were just talking about a second ago, supplying the actual needs, we'll work with Nuza to pay them.

Q. You work with Nuza for the -- the sourcing of the raw kratom; is that correct?

A. We pay -- we pay Nuza is more like what we do.

Q. Okay. And so let me -- let me clarify.

So talking about Jordan McKibban passing in April of '22, in early '22 -- so let's say January to April -- would that have been the same entities, Flo-Tech, Calibre, and Nuza, or would it have been any different set of entities at that time?

A. I think it's the same. I'm not a hundred percent sure.

Q. Do you have any way of documenting that or confirming that?

A. What dates do you need?

Q. Between January 1st of '22 to April 5th of '22?

A. Yes; I'll find out.

Q. Is that, like, just relying on the AKA emails, or is there something specific that you have set up with the AKA for that service?

A. No. We just go onto AKA's websites, and then of course through our counsel.

Q. Okay. Let me pull up some other exhibits here. I'm just making sure before we dive in here -- okay.

OPMSWholesale.com, that's not a website that JOpen has played any role in?

MS. PAYTON: Object to the form; asked and answered.

A. Correct.

BY MR. COWGILL:

Q. But OPMSKratom.com, that is a website that JOpen has been involved with in collaboration with Martian and Onix?

A. It -- it's something we work with Martian on.

Q. And Onix, as well, or --

A. I mean, Onix does the physical work, but if you look at the website, there's not a whole lot on that website that's changed over the years. It's informational.

(Exhibit 12 marked for identification.)